VANGUARD LAW LLP — REDLINE COMPARISON

DOCUMENT ID: DOC-M331-02 | MATTER: M-331 (PROJECT HELIOS) | Vanguard v4 vs. Buyer v3

DATE: SEPTEMBER 29, 2026

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1. INDEMNIFICATION CAP & MATERIALITY SCRAPE [CHUNK: CL-M331-REDLINE]

> **Redline Section 8.02(b) (Vanguard v4 vs. Buyer v3):** Opposing Counsel (Vanguard Law LLP) struck the $18,000,000 (0.75% EV) Indemnity Cap and inserted $6,000,000 (0.25% R&W Policy Retention Split), while increasing the Deductible Basket from 0.50% ($12.0M) to 0.85% ($20.4M), cutting general survival from 18 months to 12 months, and deleting the first prong (breach determination) of the Double Materiality Scrape (converting to Single Scrape — Damages Only).

2. TAX INDEMNITY & SECTION 338(H)(10) ELECTION [CHUNK: CHK-M331-REDLINE-TAX]

Redline Section 6.09(d) Tax Covenant: Opposing Counsel inserted a Seller Walk-Right if the Section 338(h)(10) Incremental Tax Gross-Up exceeds $9,500,000. Cross-reference unfiled Deal Tax Partner email `EM-9901` (Marcus Thorne) regarding the $14.2M step-up valuation model.